

LW5642: INTELLECTUAL PROPERTY LAW: THEORY, PATENTS AND TRADEMARKS

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Intellectual Property Law: Theory, Patents and Trademarks

Subject Code

LW - Law

Course Number

5642

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

LW4642 Intellectual Property Law: Theory, Patents and Trademarks

Exclusive Courses

LW6196E International and Comparative Law of Trade Marks and Patents

Part II Course Details

Abstract

To enable students to acquire a knowledge and understanding of the rules and principles of intellectual property law in HKSAR as it relates to patents and trademarks.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if DEC-A1 app.)		DEC-A2	DEC-A3
1	Explain IP in economic, cultural, scientific and political contexts		x		
2	Discuss IP legal principles in HK			x	
3	Apply the knowledge to advise on IP and related registrations			x	x
4	Apply the knowledge to advise on patent and trademark protection, infringement and defences			x	x
5	Apply the knowledge to advise on assignment and licensing of patents and trademarks			x	x
6	Research for and analyse cases and legislation about patents and trademarks		x	x	x

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	Interactive Seminars	Discussion, analysis and application of concepts, principles, legal sources and other course materials.	1, 2, 3, 4, 5, 6	3 hrs/wk
2	Class Reading	Analysis and critical evaluation of selected cases or other materials	1, 2, 3, 4, 5, 6	As required.
3	Class Discussion and / or Presentation	Exploration, analysis and application of key themes, selected issues and / or hypothetical fact questions.	1, 2, 3, 4, 5, 6	As required.

4	Guest Seminars (subject to availability and relevance of subject matter)	Provide additional insight on selected topics from an industry or practical perspective (may not be used every semester)	1, 2, 3, 4, 5, 6	
---	--	--	------------------	--

Assessment Tasks / Activities (ATs)

ATs		CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Group presentation research report	1, 2, 3, 4, 5, 6	10	-	No
2	Class Participation and Performance	1, 2, 3, 4, 5, 6	20	-	No

Continuous Assessment (%)

30

Examination (%)

70

Examination Duration (Hours)

2

Minimum Continuous Assessment Passing Requirement (%)

0

Minimum Examination Passing Requirement (%)

40

Additional Information for ATs

Open Book Exam (CILO No. 1-6)

The use of Generative AI tools is not allowed.

Grading of Student Achievement: Refer to Grading of Courses in the Academic Regulations

Applicable to students admitted from Semester A 2022/23 to Summer Term 2024

To pass this course, student must obtain an aggregate mark of 50% and a minimum of 50% in each of the continuous assessment and the examination elements of the assessment.

Applicable to students admitted before Semester A 2022/23 and in Semester A 2024/25 and thereafter

To pass this course, students must obtain an aggregate mark of 40% and a minimum of 40% in each of the continuous assessment and the examination elements of the assessment.

To ensure fair and comprehensive assessment of students' course performance, the pass mark requirement for the CA component will be waived for courses with a CA component equal to or less than 30%. This means students only need to achieve the pass marks for the final exam component AND the overall mark to pass the course. Continuous assessment for this purpose means those ways in which students are assessed otherwise than by the end of semester examination.

Assessment Rubrics (AR)**Assessment Task**

Group presentation research report (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Demonstration of understanding of principles, theories and concepts.

Demonstration of ability to identify issues.

Application of knowledge to specific problems and discussion questions.

Application of research, writing and / or communication skills.
Ability to engage in argument-based analysis.
Aptitude for formulating innovative solutions to designated fact-based questions.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Class Participation and Performance (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Demonstration of oral presentation skills and willingness / ability to answer questions in class.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Open Book Exam (for students admitted before Semester A 2022/23 and in Semester A 2024/25 & thereafter)

Criterion

Demonstration of understanding of principles, theories and concepts.

Demonstration of ability to identify issues.

Application of knowledge to specific problems and discussion questions.

Ability to engage in argument-based analysis.

Aptitude for formulating innovative solutions to designated fact-based questions.

Excellent

(A+, A, A-) Strong evidence of original thinking; good organization, capacity to analyse and synthesize; superior grasp of subject matter; evidence of extensive knowledge base.

Good

(B+, B, B-) Evidence of grasp of subject, some evidence of critical capacity and analytic ability; reasonable understanding of issues; evidence of familiarity with literature.

Fair

(C+, C, C-) Student who is profiting from the university experience; understanding of the subject; ability to develop solutions to simple problems in the material.

Marginal

(D) Sufficient familiarity with the subject matter to enable the student to progress without repeating the course.

Failure

(F) Little evidence of familiarity with the subject matter; weakness in critical and analytic skills; limited, or irrelevant use of literature.

Assessment Task

Group presentation research report (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Demonstration of understanding of principles, theories and concepts.

Demonstration of ability to identify issues.

Application of knowledge to specific problems and discussion questions.

Application of research, writing and / or communication skills.

Ability to engage in argument-based analysis.

Aptitude for formulating innovative solutions to designated fact-based questions.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Class Participation and Performance (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Demonstration of oral presentation skills and willingness / ability to answer questions in class.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Assessment Task

Open Book Exam (for students admitted from Semester A 2022/23 to Summer Term 2024)

Criterion

Demonstration of understanding of principles, theories and concepts.

Demonstration of ability to identify issues.

Application of knowledge to specific problems and discussion questions.

Ability to engage in argument-based analysis.

Aptitude for formulating innovative solutions to designated fact-based questions.

Excellent

(A+, A, A-) High

Good

(B+, B) Significant

Marginal

(B-, C+, C) Moderate

Failure

(F) Inadequate

Part III Other Information**Keyword Syllabus**

General characteristics of intellectual property, general characteristics of creations protected by patents, trade mark, patent law, definition of patentable subject matter, registration of patents, invalidity, patent infringement and defences, assignment and licensing of patents, passing off, definition of trade marks, assignment and licensing of patents, passing off, definition of trade marks, registration of trade marks trade mark infringement and defences, assignment and licensing of trade marks Trade Descriptions Ordinance, civil remedy, criminal remedy, collection of evidence.

Reading List**Compulsory Readings**

Title	
1	Nil

Additional Readings

Title	
1	Suggested Course Text(s) and / or Reference Text(s)*
2	David Llewelyn & Tanya Aplin Cornish, Intellectual Property: Patents, Copyright, Trade Marks and Allied Rights, 10th Edition. London: Sweet & Maxwell, 2023.
3	Douglas Clark, Intellectual Property in Hong Kong, LexisNexis (2022).
4	Kenny WONG & Alice LEE, Intellectual Property Law and Practice in Hong Kong, Second Edition, Sweet & Maxwell, 2017.
5	*Subject to change. Details of course text(s) and / or reference text(s) to be adopted for a given semester will be announced by the course leader in class.
6	Online Resources
7	WIPO Lex: https://wipolex.wipo.int/en/main/legislation
8	Department of Justice Bilingual Laws Information System: http://www.legislation.gov.hk/eng/home.htm
9	Hong Kong Customs and Excise Department: http://www.customs.gov.hk/
10	Hong Kong Judiciary: http://www.judiciary.gov.hk/tc/index/index.htm
11	Intellectual Property Department: http://www.ipd.gov.hk/
12	World Trade Organization: http://www.wto.org/
13	World Intellectual Property Organization: http://www.wipo.int/portal/index.html.en